

STATE OF NEW YORK

7359--A

Cal. No. 1123

2025-2026 Regular Sessions

IN SENATE

April 10, 2025

Introduced by Sen. MAY -- read twice and ordered printed, and when printed to be committed to the Committee on Agriculture -- reported favorably from said committee, ordered to first and second report, amended on second report, ordered to a third reading, and to be reprinted as amended, retaining its place in the order of third reading

AN ACT to amend the agriculture and markets law, in relation to establishing a New York native plants designation

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 16 of the agriculture and markets law is amended by
2 adding a new subdivision 2-h to read as follows:

3 2-h. In cooperation with the department of environmental conservation,
4 offer seals or logos identifying native plants as grown in New York
5 state and certified for their quality, product labeling, advertising,
6 and displays. The department, in cooperation with the department of
7 environmental conservation, shall establish appropriate standards and
8 guidelines for such designation. The department shall further provide
9 educational materials promoting awareness and understanding of native
10 plants under the New York native plants designation to horticultural
11 producers, garden centers, consumers, educational institutions, Cornell
12 cooperative extension, and relevant agricultural and environmental
13 organizations. For the purposes of this subdivision, "native plants"
14 shall mean non-invasive herbaceous and woody plant species that are
15 indigenous to New York state and are likely to maintain their range or
16 successfully adapt to anticipated climate changes in New York state and
17 the northeastern United States.

18 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11627-03-5